

25LBCV01879 25LBCV01879

County: los-angeles

Division: Civil Law and Motion

Department: S25

Hearing date: 2026-09-22

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Case Number: 25LBCV01879 Hearing Date: September 22, 2026 Dept: S25

Motion: Defendant American Honda Motor Company's Motion for Summary Adjudication

Moving Party: Defendant American Honda Motor Company ("Defendant")

Responding Party: Plaintiff Jack Adamos ("Plaintiff")

Defendant argues that it is entitled to summary adjudication on the fifth cause of action for fraudulent-inducement concealment on the ground that it is time-barred by the applicable statutes of limitations. Specifically, Defendant contends that the fifth cause of action is time-barred as the Subject Vehicle was purchased new in 2020 and the instant action was not filed until 2025. (Defendant's Separate Statement of Undisputed Material Facts ("DSSUMF") No. 1.)

NO OPPOSITION HAS BEEN RECEIVED.

Fifth Cause of Action – Fraudulent Inducement- Concealment

Code of Civil Procedure section 338, subdivision (d) provides for a three-year statute of limitations for fraud.

The Court notes that the complaint was unverified. Moreover, the Court judicially noticing the complaint does not establish the truth of the matters asserted within it. Even if the Court accepts the allegations in the complaint at face value, the complaint allegations do not establish the delivery date of the Subject Vehicle; instead, the complaint only states that the warranty contract was entered into on or around July 3, 2020. (DSSUMF No. 1; Compl., ¶ 6.) Defendant has not met its initial burden of establishing the statute of limitations has passed.

Defendant American Honda Motor Company's Motion for Summary Adjudication is DENIED.